

25TRCV04159 25TRCV04159

County: los-angeles

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Case Number: 25TRCV04159 Hearing Date: July 29, 2026 Dept: P

Superior Court
of California

County of Los
Angeles

Southwest
District

Torrance Dept. P

B ELLIOTT,

Plaintiff

Case No.:

25TRCV04159

vs.

[Tentative]

RULING RE:

DEMURRER

TO PLAINTIFF'S SAC AND MOTION TO STRIKE

MATTHEW

VANDER HORCK; KENNETH GALAN; VAN LINGEN TOWING, INC.; ROBERT VAN LINGEN; SEAN VAN LINGEN; and DOES 1-100, inclusive,

Defendants.

Hearing

Date: July 29, 2026

Department

P, Judge David K. Reinert

Demurrer

to Plaintiff's SAC and Motion to Strike

Moving

Party: Defendants

Van Lingen Towing, Inc., Robert Van Lingen, and Sean Van Lingen

Responding Party: None

RULING

The court

considered the moving papers and reply. Moving Defendants' Demurrer to the first four causes of action in Plaintiff's SAC is SUSTAINED in its entirety without leave to amend. Moving Defendants' Motion to Strike is DENIED as moot.

PROCEDURAL BACKGROUND

On December 9, 2025, Plaintiff B Elliott ("Plaintiff") filed a complaint against Defendants Matthew Vander Horck, Kenneth "Kenny" Galan, Van Lingen Towing, Inc., Robert Van Lingen, Sean Van Lingen, and DOES 1 through 100, inclusive, alleging seven causes of action for: (1) Conversion (Civil Theft) & Trespass to Chattels; (2) Negligence; (3) Violation of Vehicle Code Sections 22651 and 22852; (4) Intentional Infliction of Emotional Harm; (5) Unfair Business Practices; (6) Unclean Hands; and (7) Damages & Injunctive Relief (Return of Personal Property).

On February 11, 2026, Plaintiff filed a first amended complaint ("FAC") against the same Defendants, alleging nine causes of action for: (1)

Conversion; (2) Trespass to Chattels; (3) Negligence; (4) Violation of the Bane Act (Civil Code Section 52.1); (5) Violation of Vehicle Code Sections 22651 and 22852; (6) Intentional Infliction of Emotional Distress; (7) Unfair Business Practices (Against Van Lingen Towing); (8) Injunctive Relief (Against Van Lingen Towing); and (9) Violation of Procedural Due Process.

On February 13, 2026, Defendants Van Lingen Towing, Inc., Robert Van Lingen, and Sean Van Lingen (collectively, "Moving Defendants") filed a demurrer to Plaintiff's complaint and a motion to strike. However, Plaintiff had filed a first amended complaint on February 11, 2026.

On March 25, 2026, Moving Defendants filed a demurrer and motion to strike in response to Plaintiff's FAC. On May 6, 2026, the court sustained Moving Defendants' demurrer in its entirety with leave to amend and denied Moving Defendants' motion to strike as moot.

On June 4, 2026, Plaintiff filed a second amended complaint ("SAC") against Defendants Matthew Vander Horck, Kenneth "Kenny" Galan, Van Lingen Towing, Inc., Robert J Van Lingen, Sean Van Lingen, Oscar Castro, Ruben Lopez, David Carmichael, "Mendoza (Serial #22936)," Mr. C's Tow, "Toni," employee of Mr. C's Tow, Ricky Northcott, Kurtis McElroy, and DOES 14 through 100, inclusive (collectively, "Defendants"), alleging seven causes of action for: (1) Conversion (Civil Theft); (2) Trespass to Chattels; (3) Violation of Vehicle Code Sections 22651, 22852, 22853; (4) Negligence; (5) False Arrest and False Imprisonment; (6) Bane Act; and (7) 42 U.S.C. Section 1983 – Unlawful Seizure and Deprivation of Property Without Due Process.

On June 23, 2026, Moving Defendants filed the instant demurrer and motion to strike. On July 21, 2026, Moving Defendants filed a reply.

FACTUAL BACKGROUND

Plaintiff alleges

that on October 16, 2025, Plaintiff's vehicle (the "Subject Vehicle") was parked in an unrestricted parking space outside of the art gallery workroom at El Camino College. (SAC, ¶ 19.) Plaintiff alleges that while she was working inside the gallery, Defendant Officer Kenneth Galan entered and informed Plaintiff that the Subject Vehicle should not be parked in the space outside of the gallery and subsequently told Plaintiff that the Subject Vehicle would be towed. (SAC, ¶¶ 20, 23.) Plaintiff alleges that she called the El Camino

College Police Department ("ECCPD") and requested that Defendant Matthew Vander Horck respond to the scene to deescalate. (SAC, ¶ 33.) Next, Plaintiff alleges that Defendant Vander Horck ran a law enforcement database search using Plaintiff's personal identifiers before informing Plaintiff that she was under arrest due to a warrant for battery assault. (SAC, ¶¶ 51, 54-55.) Plaintiff alleges that she was ordered to surrender the key to the Subject Vehicle to Defendant Galan, after which Plaintiff was transported to jail. (SAC, ¶¶ 67-68.)

Plaintiff

alleges that Defendant Rubin Lopez informed Plaintiff that the Subject Vehicle was impounded due to expired registration. (SAC, ¶ 90.) Plaintiff alleges that ECCPD caused the Subject Vehicle to be released to Defendant Van Lingen Towing which took physical custody of the Subject Vehicle and transported it to a storage facility in Torrance. (SAC, ¶¶ 101-102.) Plaintiff alleges that when Moving Defendants accepted the Subject Vehicle, they were "acting pursuant to a confirmed request from ECCPD Officer Galan." (SAC, ¶ 103.)

Next,

Plaintiff alleges that on November 3, 2025, she emailed Defendant Robert Van Lingen a demand for release of the Subject Vehicle, and Defendant Van Lingen Towing did not release the Subject Vehicle. [AB1] (SAC, ¶¶ 108-109.) Plaintiff alleges that neither Defendants Robert Van Lingen nor Sean Van Lingen provided Plaintiff with written documentation identifying the legal basis for the continued retention of the Subject Vehicle. (SAC, ¶¶ 110-111.) Plaintiff further alleges that Defendant Van Lingen Towing "continued to retain possession of Plaintiff's car after receipt of Plaintiff's written demand for release." (SAC, ¶ 112.)

Plaintiff

alleges that she later learned that Signal Hill Police Department had received an abandonment report on January 20, 2026 regarding the Subject Vehicle, and Signal Hill Police informed Plaintiff that the Subject Vehicle was towed and impounded by Defendant Mr. C's Towing on January 21, 2026. (SAC, ¶¶ 137, 139.) Plaintiff further alleges that in February 2026, she "received notice from Clear Choice Lien Service, Inc., informing [Plaintiff] of the [Subject Vehicle's] lien status and pending sale." (SAC, ¶ 135.)

Plaintiff

alleges that on March 4, 2026, she visited the DMV to inquire about the

transfer of ownership of the Subject Vehicle but was provided no explanation or documentation regarding the Subject Vehicle's release from Moving Defendants. (SAC, ¶¶ 147-148.) Plaintiff alleges that she saw the Subject Vehicle for the first time on March 11, 2026, the date of the Subject Vehicle's auction, and Plaintiff bid on the Subject Vehicle, won the bid, and paid \$300.00 for the Subject Vehicle. (SAC, ¶¶ 163-164, 167-169.)

LEGAL STANDARD

A party may demur to a complaint on the grounds that it “does not state facts sufficient to constitute a cause of action.” (Code Civ. Proc. Section 430.10(e).) A party may also demur to a pleading on the grounds that the pleading is uncertain. (Code Civ. Proc. Section 430.10(f).) A demurrer tests whether the complaint states a cause of action. (Hahn v. Mirda (2007) 147 Cal.App.4th 740, 747.) A special demurrer for uncertainty under Code of Civil Procedure section 430.10(f) is disfavored and will only be sustained where the pleading is so bad that defendant or plaintiff cannot reasonably respond—i.e., cannot reasonably determine what issues must be admitted or denied, or what counts or claims are directed against him or her. (Khoury v. Maly's of Calif., Inc. (1993) 14 Cal.App.4th 612, 616.)

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When considering demurrers, courts accept all well pleaded facts as true. (Fox v. JAMDAT Mobile, Inc. (2010) 185 Cal.App.4th 1068, 1078.) “A demurrer tests the pleadings alone and not the evidence or other extrinsic matters. Therefore, it lies only where the defects appear on the face of the pleading or are judicially noticed.” (SKF Farms v. Superior Court (1984) 153 Cal.App.3d 902, 905.) “The only issue involved in a demurrer hearing is whether the complaint, as it stands, unconnected with extraneous matters, states a cause of action.” (Hahn, supra, 147 Cal.App.4th at 747.) On demurrer, a court does “not accept contentions, deductions or conclusions of fact or law.” (Simonyan v. Nationwide Insurance Company of America (2022) 78 Cal.App.5th 889, 895.)

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Although courts construe pleadings liberally, sufficient facts must be alleged to support the allegations pled to survive a demurrer. (Rakestraw v. California Physicians' Serv. (2000) 81 Cal.App.4th 39, 43.) Where a

demurrer is sustained, leave to amend must be allowed where there is a reasonable possibility of successful amendment. (Goodman v. Kennedy (1976) 18 Cal.3d 335, 349.) The burden is on the party who filed the pleading subject to demurrer to show the court that a pleading can be amended successfully. (Ibid.)

DISCUSSION

Moving Party's Argument

Moving Defendants demur to the first, second, third, and fourth causes of action alleged against them in Plaintiff's SAC. Moving Defendants argue that the SAC remains fatally uncertain as to Moving Defendants because it continues to refer to "Defendants" collectively, and further argue that the SAC contains no specific factual allegations regarding any of Moving Defendants individually.

Moving Defendants argue that Plaintiff's first cause of action fails because the SAC alleges that Defendant Van Lingen Towing accepted Plaintiff's vehicle pursuant to a request from a police officer, which negates the "wrongful act" element of conversion. Moving Defendants argue that Plaintiff's second cause of action fails because it is duplicative of Plaintiff's conversion cause of action and because no physical harm is attributed to the period in which the vehicle was in Moving Defendants' custody. Moving Defendants next argue that Plaintiff's third cause of action fails because no private right of action for damages exists against a towing operator who is executing a police directive. Moving Defendants argue that Plaintiff's fourth cause of action fails because Plaintiff has not identified any specific duty owed by Moving Defendants or a specific breach by Moving Defendants, and Plaintiff fails to distinguish what damages were caused by Moving Defendants.

Moving Defendants also move to strike Plaintiff's prayers for punitive damages, attorney's fees, and declaratory relief in addition to Plaintiff's allegations in paragraphs 39-40, 183-185, 186, and 196 of the SAC. Moving Defendants argue that the SAC does not allege that Moving Defendants acted with malice, oppression, or fraud and Plaintiff has alleged no basis to recover attorney's fees. Moving Defendants argue that Plaintiff's prayer for declaratory relief is unsupported by any cause of action alleged against Moving Defendants, and further object to individual paragraphs in the SAC as being conclusory and without factual support.

Opposing Party's Argument

No opposition was filed.

Reply Argument

Moving Defendants submitted a reply noting Plaintiff's lack of opposition and reiterate their argument that Plaintiff's SAC contains the same defect as the FAC did, by referring to "Defendants" collectively. Moving Defendants also reiterate their argument that Plaintiff's first four causes of action independently fail.

Request for Judicial Notice

Within the notice regarding the instant demurrer and motion to strike, Moving Defendants request that the court take judicial notice of the following records: (1) Plaintiff's original complaint; (2) Plaintiff's FAC; (3) Moving Defendants' demurrer and motion to strike directed at the FAC; (4) the court's May 6, 2026 order sustaining Moving Defendants' demurrer in its entirety with leave to amend; and (5) Plaintiff's SAC.

The court notes that Moving Defendants have not properly filed their request for judicial notice separately with the court, instead inserting it within the moving papers. However, the court exercises its discretion to consider Moving Defendants' request.

The court may take judicial notice of its own records pursuant to Evidence Code Section 452(d). Accordingly, Moving Defendants' request for judicial notice is GRANTED in its entirety.

Merits of the Motion

A.

Meet and Confer Requirements

Before filing a demurrer, the demurring party is required to meet and confer "in person, by telephone, or by video conference with the party who filed the pleading that is subject to the demurrer for the purposes of determining whether an agreement can be reached through a filing of an amended

pleading that would resolve the objections to be raised in the demurrer.” (Code Civ. Proc. Section 430.41(a).)

Here, Moving Defendants’ counsel declares that on June 8, 2026, he sent Plaintiff meet-and-confer letters to which Plaintiff responded in writing on June 22, 2026. (Esbin Decl., ¶¶ 4-5.) Moving Defendants’ counsel declares that the parties “exchanged further correspondence on June 22 and June 23, 2026,” but were unable to reach an agreement. (Esbin Decl., ¶ 5.)

As the parties have not met and conferred in person, by telephone, or by video conference, the meet and confer requirements have not been satisfied. However, the court will still discuss the merits of Moving Defendants’ instant demurrer because a failure to comply with the meet and confer requirements alone does not defeat a demurrer. (Code Civ. Proc. Section 430.41(a)(4).)

B.

Uncertainty: Code of Civil Procedure Section 430.10(f)

California Code of Civil Procedure Section 430.10(f) provides that a party may object to the complaint filed against them by demurrer to the pleading on the grounds that “the pleading is uncertain,” a term which “includes ambiguous and unintelligible.” (Code Civ. Proc. Section 430.10(f).) A demurrer for uncertainty will only be sustained where the defendant cannot reasonably respond to the complaint, such that the defendant cannot reasonably determine what claims are directed against her, or what issues must be admitted or denied. (Khoury, *supra*, 14 Cal.App.4th at 616.)

However, if a complaint does not properly distinguish between multiple defendants, such that it is not clear which factual allegations are made as to which parties, the complaint fails for ambiguity. (See *Hawley Bros. Hardware Co. v. Brownstone* (1899) 123 Cal. 643, 646-647.) Allegations made against multiple defendants are fatally uncertain where plaintiff alleges the same harm against multiple defendants but makes no effort to either apportion their liability or show why it cannot be apportioned in the complaint. (See *Landau v. Salam* (1971) 4 Cal.3d 901, 909.)

Moving Defendants argue that Plaintiff’s first, second, third, and fourth causes of action in the SAC are fatally uncertain because they consistently refer to “Defendants,” collectively, without specifying the conduct that is

attributable to each individual Defendant.

At the outset, the court notes that the entirety of Plaintiff's SAC is uncertain because while the caption lists twelve causes of action, the body of the SAC contains seven causes of action. While the caption of the SAC includes causes of action for Intentional Infliction of Emotional Harm, Unfair Competition, Declaratory Relief, Injunctive Relief, and Violation of Procedural Due Process, these five additional causes of action are not referenced anywhere else in the SAC, creating uncertainty.

In the SAC's first cause of action, Plaintiff alleges that Moving Defendants "accepted possession of Plaintiff's car and retained possession after receiving Plaintiff's written demands for release," and "Plaintiff was not provided by [Moving Defendants] documentation establishing lawful authority for continued retention of the car." (SAC, ¶¶ 194-195.) Plaintiff further alleges that the vehicle was "subsequently and mysteriously released, transferred, abandoned, sold, auctioned, or otherwise disposed of without Plaintiff's authorization by [Moving Defendants] or its agents or employees." (SAC, ¶ 196.) Plaintiff later alleges that Defendants Mr. C's Tow, Toni, Ricky Northcott, and Kurtis McElroy "thereafter exercised possession, custody, control, auction authority, or disposition authority over Plaintiff's vehicle." (SAC, ¶ 197.)

The court finds that Plaintiff has failed to distinguish between the conduct attributed to each Moving Defendant individually, instead repeatedly grouping them together. Plaintiff also generally alleges that "Defendants," including Moving Defendants and Defendants Kenneth Galan, Matthew Vander Horck, Ruben Lopez, Mr. C's Tow, Toni, Ricky Northcott, and Kurtis McElroy, "interfered with Plaintiff's ownership and possessory rights." (SAC, ¶ 199.) The court finds that the SAC's first cause of action does not properly distinguish between the conduct of each individual Defendant, and thus Moving Defendants cannot reasonably respond.

Next, Plaintiff's second cause of action for Trespass to Chattels repeatedly refers to the conduct of "Defendants" collectively, with this cause of action also alleged against Moving Defendants and Defendants Kenneth Galan, Matthew Vander Horck, Ruben Lopez, Mr. C's Tow, Toni, Ricky Northcott, and Kurtis McElroy. (SAC, ¶¶ 203, 206.)

Similarly, Plaintiff's third cause of action for Violation of California

Vehicle Code Sections 22651, 22852, and 22853, alleged against Moving Defendants and Defendants Kenneth Galan, Matthew Vander Horck, and Ruben Lopez, repeatedly refers generally to "Defendants" without attempting to distinguish the conduct of each individual Defendant. (SAC, ¶ 214.)

Next, Plaintiff's fourth cause of action for Negligence, alleged against all named Defendants, refers broadly to "Defendants." (SAC, ¶¶ 218-219.) Given that Plaintiff's first, second, third, and fourth causes of action refer to multiple Defendants without clarifying which factual allegations are made as to which Defendants, the court agrees with Moving Defendants that each of the SAC's first four causes of action are fatally uncertain.

Accordingly, Moving Defendants' special demurrer for uncertainty to the SAC's first, second, third, and fourth causes of action is SUSTAINED without leave to amend.

C.

Failure to State a Cause of Action: Code of Civil
Procedure Section 430.10(e)

Alternatively, Moving Defendants demur to the SAC's first four causes of action for failure to state sufficient facts. As the court has sustained Moving Defendants' special demurrer for uncertainty, the court only briefly addresses Moving Defendants' arguments made on the basis of Code of Civil Procedure Section 430.10(e).

As to the causes of action for conversion, Plaintiff is required to allege that defendants acted wrongfully in the taking of property. In this case, Plaintiff alleges that Moving Defendants acted pursuant to the direction of law enforcement. This alone negates the element of wrongfulness.

Plaintiff has not, and cannot state sufficient facts for the third cause of action for violations of Vehicle Code sections 22651, 22852, and 22853. These sections provide for the procedures by which notice of a towed vehicle is given to the registered owner. As they are procedural in effect, there is no mechanism by which a private right of action can lie. As there is no private right of action, there is no basis for a lawsuit as to these sections.

As to the fourth cause of action for negligence, the FAC alleges that the Moving Defendants were directed to tow Plaintiff's vehicle by law enforcement.

While it is possible that a duty could flow to the owner of that vehicle to use reasonable care in so doing, there are no facts alleged which show a breach of that duty nor damages which flowed from that breach.

D.

Motion to Strike

The court may, upon motion, or at any time in its discretion, and upon terms it deems proper, strike any irrelevant, false, or improper matter inserted in any pleading. (Code Civ. Proc. Section 436(a).) The court may also strike all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court. (Code Civ. Proc. Section 436(b).) The grounds for a motion to strike are that the pleading has irrelevant, false, or improper matter, or has not been drawn or filed in conformity with laws. (Code Civ. Proc. Section 436.) The grounds for moving to strike must appear on the face of the pleading or by way of judicial notice. (Code Civ. Proc. Section 437(a).)

Moving Defendants move to strike Plaintiff's prayers for punitive damages, attorney's fees, and declaratory relief, in addition to paragraphs 39-40, 183-185, 186, and 196 of the SAC.

Because the court previously sustained Moving Defendants' special demurrer in its entirety, Moving Defendants' motion to strike is DENIED as it may be relevant as to non-moving defendants. [AB2]

E.

Leave to Amend

Leave to amend must be allowed where there is a reasonable possibility of successful amendment. (Vaccaro v. Kaiman (1998) 63 Cal.App.4th 761, 768 ("When the defect which justifies striking a complaint is capable of cure, the court should allow leave to amend.")) The burden is on the complainant to show the Court that a pleading can be amended successfully. (Blank v. Kirwan (1985) 39 Cal.3d 311, 318.)

Given that court has sustained Moving Defendants' demurrer to the SAC on the same grounds as the court previously sustained Moving Defendants' demurrer to Plaintiff's FAC, and Plaintiff does not oppose the current motion, the court finds that there is no reasonable possibility of successful amendment.

Accordingly, the court DENIES leave to amend as to the SAC's first, second, third, and fourth causes of action.

CONCLUSION

Based on the foregoing, Moving Defendants' Demurrer to the first four causes of action in the SAC is SUSTAINED in its entirety without leave to amend. Moving Defendants' Motion to Strike is DENIED as moot as to the moving Defendants.

Moving party is ordered to give notice of ruling.